

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: September 8, 2014

TYPE OF DOCUMENT: (X_ORDINANCE) (_RESOLUTION) (_PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (_LEASE/CONTRACT) (_CHANGEORDER/CONTRACT
MODIFICATION) (_CONSIDER BID) (_APPLICATIONS/LICENSES/PERMITS)
(_APPOINTMENTS) (_ANNOUNCEMENTS/REPORTS/MOTIONS) (_OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) Dicky Shanor

EXACT WORDING FOR AGENDA: An Ordinance vacating a portion of Alexander Avenue & 13th Street, adjacent to Blocks 444, 445, 452 and 453, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Dunn Avenue).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____)

CONTACT PERSON: Josh Tetzlaff PHONE: 637-6258 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	()	()	(X)
Were Bids called for?	()	()	(X)
Affected parties notified of Council procedure and dates?	(X)	()	()
Has bond, insurance or other security been arranged?	()	()	(X)
Have legal descriptions been checked?	(X)	()	()

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The Cheyenne Planning Commission recommended approval of the above described Vacation Request by a unanimous vote of 4 to 0 at their meeting on September 2, 2014. See the attached Staff Report for more definitive information.

=====

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: September 3, 2014

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

Engineering Tech Branch

Development Office

STAFF REPORT - SUMMARY

Portions of Alexander Avenue and E. 13th Street

Street Vacation Process

CASE NUMBER(s): UDC-14-00331

FILE CODE: RDAX-V

PREPARED BY: Brett Walker

MEETING September 2, 2014 – Planning Commission

DATES: September 8, 2014 – City Council

REQUIRED DOCUMENTS SUBMISSION: All required documents have been submitted and reviewed by staff.

- Complete Application
- Petition to Vacate
- Vacation Map

RECOMMENDATION: The Planning and Development Office recommends approval of the vacation request pursuant to criteria outlined in Section 2.1.4.d of the Cheyenne UDC.

STAFF REPORT UPDATE (09/03/2014): At its regular meeting on Tuesday, September 2, 2014, the Cheyenne Planning Commission recommended approval of the vacation request, made pursuant to Section 2.1.4.d of the Cheyenne UDC, by a unanimous vote of 4 to 0.

STAFF REPORT

Portions of Alexander Avenue and E. 13th Street

Street Vacation Process

CASE NUMBER(s): UDC-14-00331 **FILE CODE:** RDAX-V

PREPARED BY: Brett Walker

MEETING DATES: September 2, 2014 – Planning Commission
September 8, 2014 – City Council

APPLICANT(S): Fat Boys Tire & Auto, JML, LLC; and 307-632-1671
Suburban Propane, LP; and
Capital Lumber Co.
1151 E. Lincolnway
Cheyenne, WY 82001

AGENT: Jack Studley 307-287-4755
City of Cheyenne
2101 O'Neil Ave.
Cheyenne, WY 82001

PROJECT: Fat Boys

WORK DESCRIPTIONS: To clarify property lines for existing commercial sites

LOCATION:

- (1) Legal Description: Portions of Alexander Avenue & 13th Street, adjacent to Blocks 444, 445, 452 and 453, Original City, Cheyenne, Wyoming
- (2) Location: South of E. Lincolnway, west of Dunn Avenue
- (3) Address: Vacant

AREA TO BE VACATED: 0.68 acres

CURRENT ZONING: CB and LI

PROPOSED ZONING: No change

EXISTING LAND USE: Commercial (though platted as ROW)

PROPOSED LAND USE: Commercial

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Nationway/Park	P/CB	City
South	Industrial	LI	City
East	Commercial	LI	City
West	Commercial	CB/LI	City

EXECUTIVE SUMMARY:

The applicant is requesting a vacation of 29,616 square feet of right-of-way. A similar vacation request was approved in July of 2013 for portions of Duff Avenue and E. 13th street immediately west of this site. As the title of this staff report suggests, the ROW that is the subject of this vacation request are portions of Alexander Avenue and E. 13th Street. The subject property is east and southeast of Fat Boys Tire and Auto. It is not utilized and its future use is limited with no options for connectivity. While not constructed as such, the streets are still used for access to the businesses, as well as for the day-to-day operations of the respective businesses. This vacation will proportionally transfer the ROW (see map) currently used for access to adjacent private property owners. Without any recorded easements, utilities and access will not have any formal arrangement in place and the area could be fenced off and used by the owners (to the extent allowed in code and established through a site plan review). This vacation will release the City from any responsibility for maintenance and construction of the ROW.

VACATION DATA:

In reviewing, providing comments, and making recommendations and decisions on a proposed street vacation, the staff, Planning Commission and City Council shall use the following criteria:

The vacation meets the purposes, intent, and applicable standards of Article 4.

The ROW is not necessary to the existing, or future, street network of the area because the ROW being vacated could only direct around a small piece of land owned by Suburban Propane, which is not a desired option. Greenway has been constructed along Nationway to the east, further dissuading pedestrian and bicycle traffic from using the area to be vacated. All the businesses back up to the railroad.

The ability of all existing and potential future development on adjacent lots to meet all applicable standards for development in the existing zoning district, including other development options in the event that any specific development proposed in association with the vacation is not executed after approval.

The vacation should have minimal impact on future development of adjacent properties as they all have formal accesses from other constructed streets.

The vacation reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.

It is important to note that future development of the larger area for substantially different or expanded uses will in all likelihood require the replatting of this entire area, and could require the dedication of new ROW in a different configuration. NOTE: Replatting is not required at this time. Prior to utilizing the property to be vacated for outdoor storage, the parking of vehicles, or constructing a fence on the property, administrative Site Plan approval will be required. As part of the application for site plan review, traffic impact and drainage analysis will be addressed.

The application meets the public interest, and is not otherwise prohibited by other city, state or federal laws.

The application is not prohibited by any other City, state, or federal laws

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Board of Public Utilities: Linda Gunter 08/05/2014

The Board of Public Utilities has existing Water and Sewer Mains just north of Fat Boy's Tire and Suburban Propane. The existing Water and Sewer Mains runs along E. Lincolnway, across Alexander Ave., along Nationway, across E 13th St. and finally down Dunn Ave. Appropriate easements for water and sanitary sewer utilities that are not located or constructed within the roadway or Public Right of Way must be provided. The easement width shall be for no less than 20 feet for one utility main located in the center of the easement and shall be no less than 30 feet wide when two utility lines are constructed in parallel and are centered within the easement. The BOPU reserves the right to require wider utility easements for unique situations (such as, but not limited to, a 40 foot wide easement when constructing a water and/or sewer main between two buildings or when multiple utilities are located within the same easement or when the utility is in excess of 10 feet deep). The Board of Public Utilities is requiring that easements for the existing Water and Sewer Mains be shown and recorded on this Vacation Map. ***NOTE:*** *There are no such easements within the boundary of this vacation request*

City Surveyor: Jack Studley 08/11/2014

Boundary data and legal descriptions appear in order.

Laramie County Assessor: Clarice Blanton 08/07/2014

Instead of adding yet another description for portions of vacated streets and alleys, please consider re-platting this whole area. If not, a legal description for each portion going to the individual owners will be necessary.

Traffic Engineering: Mark Escobedo 08/06/2014

1. A Transportation Worksheet to determine TIA/TIS requirements was not provided as required. However this is a City of Cheyenne Project. The vacated property is going back to the adjacent landowners. No net increase in traffic is expected as a result of this Vacation Map.

Fire Department: Jim Schamerhorn 08/11/2014

The proposed vacation shall be contingent upon maintaining at all times the minimum fire access prescribed by Appendix "D" of the current edition of the International Fire Code. The IFC precludes parking of vehicles, or erecting obstructions that would hamper clear and normal access to the area.

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: City Engineer, Drainage Engineer, Engineering – General, GIS, City Attorney

AGENCIES AND REVIEWERS NOT RESPONDING: Emergency Management, CLF&P

OTHER COMMENTS RECEIVED: None

Encl: Vacation Map
Petition to Vacate
Aerial Map

cc: Owner
Agent/Applicant
File

STATE OF WYOMING)
) SS
COUNTY OF LARAMIE)

PETITION FOR VACATION (CITY)
TO: THE HONORABLE MAYOR

Richard L. Kaysen

AND MEMBERS OF THE CITY COUNCIL,
CITY OF CHEYENNE, WYOMING

KNOW ALL:

THAT JML, Limited Liability Corporation
is the owner of the following described real property:

✶ Portion of Block 444, Orig. City of Cheyenne (Warranty Deed - Bk 1823, Pg 574)
and Capital Lumber Company

is the owner of the following described real property:

✶ Portion of Block 453, Orig. City of Cheyenne (Quitclaim Deed - Bk 1464, Pg 514)
and Capital Lumber Company

is the owner of the follow described real property:

✶ Lots 1 - 4, Block 452, Orig. City of Cheyenne (Quitclaim Deed - Bk 1035, Pg 469)
and Suburban Propane, L.P. a Delaware limited partnership

is the owner of the follow described real property:

✶ Portion of Block 445, Orig. City of Cheyenne (Sale Deed - Bk 1424, Pg 1493)
all of which properties are adjacent to the following right-of-way or land

Alexander Avenue and 13th Street, Original City of Cheyenne

which the undersigned owners hereby petition to be vacated by the City of Cheyenne.
The above named owners constitute the owners of all property abutting the portion of
dedicated right-of-way or land for which vacation is requested.

BUILDING&DEVELOPMENTOFFICE

JUL 25 2014

RECEIVED

THAT the portion of right-of-way or land which the undersigned owners request to be vacated includes the following sections of dedicated streets and alleys

Alexander Ave. from the Southerly boundary of the State of Wyoming, State Highway Commission property (Quitclaim Deed - Bk 1140, Pg 526), Southeasterly to the Northerly boundary of that portion of Alexander Ave. vacated under City Resolution No. 1331;

And 13th Street Northeasterly from the Easterly right of way of Alexander Ave. to the Westerly boundary of that portion of 13th Street vacated under City Ordinance No. 1900.

adjacent to the following lot (s) and block (s) in the following subdivision:

All in the Original City of Cheyenne
Lots 1 and 8, Block 444 (JML, LLC)
Portion of Lots 5 and 6, Block 445 (Suburban Propane, L.P.)
Portion of Lot 6, Block 445 (City of Cheyenne)
Lot 4, Block 452 (Capital Lumber Company)
Lots 1 and 8, Block 453 (Capital Lumber Company)

The undersigned petitioners hereby respectfully request that said described portions of dedicated right-of-way or land be vacated by the City of Cheyenne and that title to the vacated area revert to the adjacent property owners in accordance with established policy. An accurate map, prepared by:

City of Cheyenne, City Surveyor, John J. Studley, WY L.S. No. 4828

a Land Surveyor registered in the State of Wyoming, accompanies this petition and a plat of all the real property and right-of-way described herein has previously been filed with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

DATED THIS

18

DAY OF

July

20

14

Respectfully submitted,



Paul Abel, Senior Vice President,
General Counsel & Secretary
Suburban Propane, L.P. a Delaware
Limited partnership

ATTEST



Signature

Susan G. Delia

Name

SR. Real Estate Manager

Title

BUILDING&DEVELOPMENTOFFICE

JUL 25 2014

RECEIVED

DATED THIS

10th

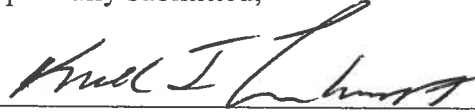
DAY OF

July

,20

14

Respectfully submitted,



Kirk J. Lenhardt, Managing Partner
JML.LLC

ATTEST



Signature

MICHAEL J. HAXMAN

Name

MANAGER

Title

DATED THIS

10th

DAY OF

July

,20

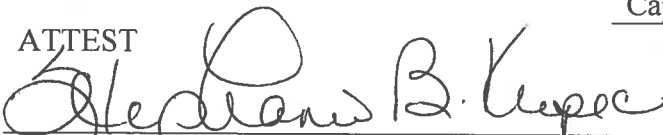
14

Respectfully submitted,



Butch Heimsoth, President
Capital Lumber Company

ATTEST



Signature

Stephanie B. Kupec

Name

Bookkeeper

Title

BUILDING & DEVELOPMENT OFFICE

JUL 25 2014

RECEIVED

Approved as to
form only
D. White
Date: 9/2/2014

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE VACATING A PORTION OF ALEXANDER AVENUE AND 13TH STREET, ADJACENT TO BLOCKS 444, 445, 452 AND 453, ORIGINAL CITY, CHEYENNE, WYOMING (LOCATED SOUTH OF E. LINCOLNWAY, WEST OF DUNN AVENUE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the right-of-way described as a portion of Alexander Avenue and E. 13th Street Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Dunn Avenue), as described in the Vacation Map attached hereto and incorporated herein, be and is hereby vacated.

Section 2. The vacation of said portions of Alexander Avenue and E. 13th Street is in the best interest of the City of Cheyenne and its residents.

Section 3. That real property within the said vacated right-of-way shall revert to the ownership of adjacent property owners pursuant to Wyoming State Statutes.

Section 4. The real property within said vacated right-of-way shall be subject to any easements, reservations and restrictions of record and as represented on the attached Vacation Map.

Section 5. The City Clerk is directed to record this ordinance, together with the Vacation Map, with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

Section 6. That the City Engineer's office is directed to change the Official City Map to reflect this vacation and the Official Zoning Map to designate the vacated right-of-way as included in the adjacent zone districts.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 8. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

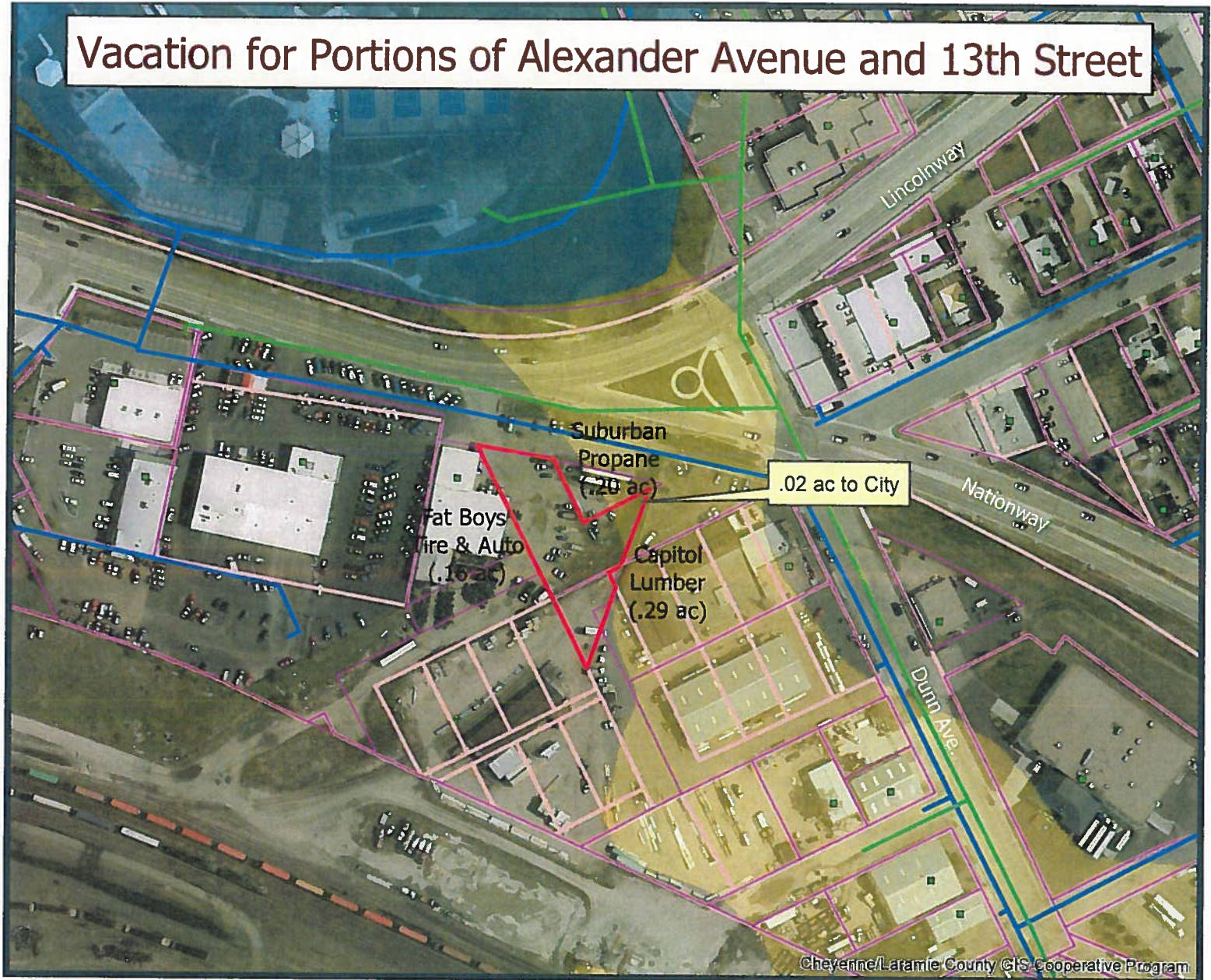
THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

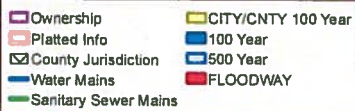
(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

Vacation for Portions of Alexander Avenue and 13th Street

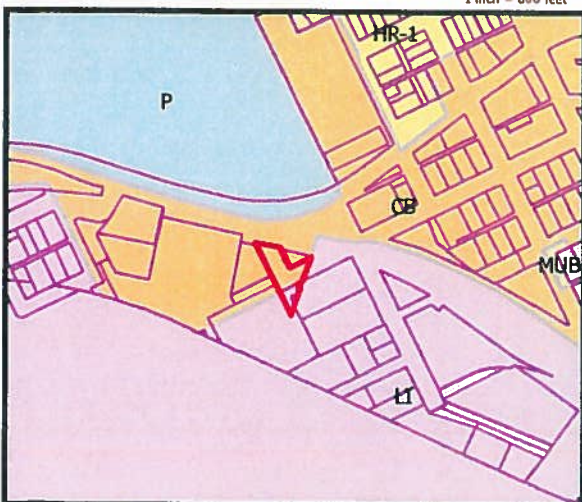


Applicant: Numerous
Agent: Jack Studley
Application Number(s):
UDC-14-00331



Area to be vacated: .68 acres

Zone Districts

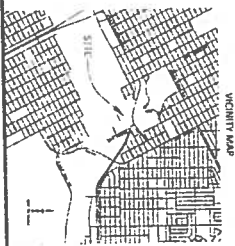


This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data



Future Land Use Map





Approved by the City of Cheyenne Planning Commission this _____ day of _____, 2014

Approved by the City Council of the City of Cheyenne, Wyoming this _____ day of _____, 2014.

Attest: City Clerk

TOTAL AREA TO BE VACATED: 28,616.0 SQUARE FEET, OR
0.68 ACRES

TO BE DIVIDED AS FOLLOWS:
7,171 38/6.16 AC. - JNO. LLC (PVT BOTS TRK & AUTO
8,722 38/6.20 AC. - STEPHAN PROpane

17 026 7 87/0 29 AC - CAPITAL LUMEN

095,2 SF/0.02 AC - CITY OF CHICAGO

FOUND SURVEY NORTHWEST OF RECORD
SITE 24° NO. 5 REBAR WITH 1 1/4" ALUMINUM CAP STAGGED L.S. 4818
COC

A portion of Alexander Avenue and 13th Street adjacent to lots 1 and 8 of Block 444, lots 5 and 6 of Block 451, lot 4 of Block 452, and lot 1 of Block 453, Original City of Cheyenne, Laramie County, Wyoming, being more particularly described as follows:

of said block, to wit, the corner of 13th street, there containing on an area of 40.03 feet to the centerline of 13th street, there containing on an area of 153.33'02", a diagonal of 40.03 feet to the Point of Beginning. Containing 29,616.8 square feet, or 0.68 acres more or less.

FOR

A PORTION OF ALEXANDER AVENUE AND
13TH STREET, ADJACENT TO BLOCKS
444, 445, 452 AND 453, ORIGINAL
CITY OF CHEYENNE, LARAMIE COUNTY,

DATE OF PREPARATION: JUNE 2014

RHODENED
Ru 2, 211

VACATION OF PORTIONS
OF 13th ST AND ALEXANDER AVE



CITY OF CHEYENNE
2101 O'NEIL AVENUE
CHEYENNE, WYOMING 82001
(307) 637-6274

SHEET 1 OF 1	Travels Inc.	100.00%
	Amount For	\$0.00
	Deductible By:	\$0.00
	Approved By	210
	Date:	6-12-10
	Sent:	1/10/10
Voucher: VACATION MAP		